

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DIP SHIPPING COMPANY, LLC, *REVOCATION OF OCEAN
TRANSPORTATION INTERMEDIARY LICENSE No. 018752.*

DOCKET NO. 20-04

Served: May 22, 2020

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER ON MOTION TO FILE A SUBMISSION AS *AMICUS CURIAE* AND REQUEST FOR HEARING

On May 21, 2020, a motion to file a submission as *amicus curiae* was received from the United States Department of Justice, Antitrust Division. Subpart X, which governs this proceeding, does not include a rule regarding *amicus curiae* submissions. 46 C.F.R. §§ 502.701-502.709. In addition, Subpart X lists Commission rules that are applicable to this Subpart but does not include the rule regarding *amicus curiae* briefs, Commission Rule 73, in the list. 46 C.F.R. §§ 502.709, 502.73.

The deadline for parties to respond to a motion to file an *amicus curiae* submission is not specified in the Commission's rules. The Final Rule in Docket 19-04, which created Subpart X, noted that "the Commission has encountered issues with regards to expediency and clarity of process" and that the "new procedure will provide additional structure while ensuring a low-burden and efficient process." Hearing Procedures Governing the Denial, Revocation, or Suspension of an OTI License, 85 Fed. Reg. 5581 (Jan. 31. 2020).

To provide structure and ensure an efficient process, it is requested that the Bureau of Enforcement ("BOE") incorporate any arguments regarding the *amicus curiae* submission, including what standard it thinks would be appropriate to review such motions in Subpart X proceedings, in BOE's reply brief, due on June 10, 2020.

Also on May 21, 2020, Dip Shipping Company, LLC ("Dip Shipping") filed its response which included a request for discovery and an oral hearing. Both requests are denied at this time. However, Dip Shipping may file a sur-reply on or before June 22, 2020, addressing the motion to file an *amicus curiae* submission, the appropriate standard for reviewing such motions, the need for additional discovery or a hearing, and any other arguments raised by BOE in their reply brief.

BOE and Dip Shipping are encouraged to discuss an amicable resolution of this proceeding. If necessary, the parties may jointly request a brief extension of the due dates to finalize a settlement and file a motion seeking approval of the settlement.



Erin M. Wirth
Chief Administrative Law Judge